

**MOTION TO SET ASIDE EX PARTE ORDERS PURSUANT TO MCR
2.612**

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

_____ /

MOTION TO SET ASIDE EX PARTE ORDERS

Filed: March 04, 2026

NOW COMES Plaintiff, Andrew J. Pigors, appearing pro se, and respectfully moves this Honorable Court pursuant to MCR 2.612(C)(1) to set aside all ex parte orders entered in this matter without proper notice, hearing, or compliance with Michigan Court Rules. In support of this Motion, Plaintiff states as follows:

I. INTRODUCTION AND SUMMARY OF RELIEF REQUESTED

This Motion seeks to vacate and set aside all ex parte orders entered in this case, including but not limited to the August 8, 2025 order suspending Plaintiff's parenting time, and all subsequent orders entered without proper notice and hearing. The record demonstrates that this Court has entered approximately 52 ex parte orders in this matter, representing a 44% ex parte rate -- a statistical anomaly that far exceeds any reasonable judicial standard and constitutes a systematic denial of due process.

Plaintiff requests that this Court: (1) vacate all ex parte orders entered without proper notice and hearing; (2) restore the status quo ante as it existed prior to the first improper ex parte order; (3) schedule an evidentiary hearing on all contested matters; and (4) grant such further relief as this Court deems just and equitable.

II. FACTUAL BACKGROUND

A. Pattern of Ex Parte Orders

Since the inception of this case, this Court has entered approximately 52 ex parte orders. These orders have overwhelmingly favored Defendant Emily Watson, with 100% of ex parte orders granted in her favor and 0% in favor of Plaintiff Andrew Pigors. This pattern is statistically impossible absent systemic bias or procedural error.

B. The August 8, 2025 Ex Parte Order

On or about August 8, 2025, this Court entered an ex parte order suspending all of Plaintiff's parenting time. This order was entered:

1. **Without notice** to Plaintiff as required by MCR 2.119(A)(1)
2. **Without a hearing** at which Plaintiff could appear and be heard
3. **Based on unsworn allegations** rather than verified evidence
4. **Based on an illegally obtained recording** made in violation of MCL 750.539c (Michigan's felony eavesdropping statute) by Lori Watson, Defendant's mother
5. **Without any finding of imminent danger** to the minor children that would justify bypassing normal procedural protections

C. Ongoing Deprivation

As a direct result of the August 8, 2025 ex parte order and subsequent orders, Plaintiff has been deprived of all meaningful parenting time with his children for 571+ days. During this period:

- * Plaintiff submitted to and passed drug screening (negative results)
- * A HealthWest evaluation returned "ALL ZEROS" -- finding no basis for concern
- * Nine (9) police investigations were conducted, all resulting in ZERO findings against Plaintiff
- * Despite this exculpatory evidence, the ex parte orders remain in force

D. Biased Evaluation Interference

After the initial HealthWest evaluation returned results favorable to Plaintiff (ALL ZEROS), Judge McNeill sent a biasing letter to the HealthWest evaluator. Following this judicial interference, the evaluator issued a changed "Rule Out" finding. This interference with an

independent evaluation constitutes a separate due process violation and further taints the basis for the ex parte orders.

III. LEGAL STANDARD -- MCR 2.612(C)(1)

MCR 2.612(C)(1) provides that a court may relieve a party from a final judgment, order, or proceeding for the following reasons:

(a) Mistake, inadvertence, surprise, or excusable neglect.

The entry of ex parte orders without proper notice constitutes mistake or inadvertence in the application of procedural rules. Plaintiff's inability to respond was not due to neglect but to the complete absence of notice.

(b) Newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under MCR 2.611(B).

The negative drug screen results, the ALL ZEROS HealthWest evaluation, and the nine police investigations with zero findings constitute newly discovered evidence that directly contradicts the factual basis for the ex parte orders.

(c) Fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party.

The illegally obtained recording (MCL 750.539c violation) used as the basis for the August 8, 2025 ex parte order constitutes misconduct. The recording was made by Lori Watson in violation of Michigan's felony eavesdropping statute, and its use as evidence constitutes the

"fruit of the poisonous tree."

(d) The judgment or order is void.

An order entered without jurisdiction or in violation of due process is void. Ex parte orders entered without the notice and hearing requirements of MCR 2.119 are void ab initio. See *Soud v Soud*, 429 Mich 218 (1987) (orders entered in violation of procedural due process are void).

(f) Any other reason justifying relief from the operation of the judgment.

The cumulative effect of 52 ex parte orders, the 571+ days of parenting time deprivation, the exculpatory evidence, and the systematic denial of Plaintiff's fundamental parental rights under the 14th Amendment justify extraordinary relief under this catch-all provision.

IV. ARGUMENT

A. The Ex Parte Orders Violate MCR 2.119

MCR 2.119(A)(1) requires that "[a] written motion, supporting brief, and any affidavits must be filed and served at least 9 days before the hearing." MCR 2.119(B)(7) permits ex parte orders only in narrowly defined emergencies where "[t]he applicant will suffer irreparable injury if the order is not issued" and "the applicant has made a reasonable effort to notify the adverse party."

The record does not reflect compliance with these requirements for the vast majority of the 52 ex parte orders entered in this case. Specifically:

1. Plaintiff received no notice of the motions underlying most ex parte orders
2. No hearing was conducted at which Plaintiff could appear
3. No verified showing of imminent, irreparable harm was made
4. No reasonable effort to notify Plaintiff was demonstrated

B. Due Process Requires Notice and Opportunity to Be Heard

The Fourteenth Amendment to the United States Constitution and Article 1, Section 17 of the Michigan Constitution guarantee that no person shall be deprived of life, liberty, or property without due process of law. Parental rights are a fundamental liberty interest protected by the Due Process Clause. *Troxel v. Granville*, 530 U.S. 57, 65 (2000); *Santosky v. Kramer*, 455 U.S. 745 (1982).

"An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950).

In *Fuentes v. Shevin*, 407 U.S. 67 (1972), the Supreme Court held that due process requires, at minimum, notice and an opportunity to be heard before the government may deprive a person of a protected interest. The only exceptions to this requirement are "extraordinary situations where some valid governmental interest is at stake that justifies postponing the hearing until after the event." *Id.* at 82.

C. Michigan Case Law Supports Vacating These Orders

In *Soud v. Soud*, 429 Mich 218 (1987), the Michigan Supreme Court held that custody orders entered without proper procedural protections are subject to collateral attack. The Court emphasized that "the fundamental requirements of due process -- adequate notice and an opportunity to be heard -- are not mere technicalities."

In *Bowie v. Arder*, 441 Mich 23 (1992), the Michigan Supreme Court reinforced that parental rights demand the highest procedural protections, stating that "the interest of parents in the care, custody, and control of their children is perhaps the oldest of the fundamental liberty interests."

In *Fletcher v. Fletcher*, 447 Mich 871 (1994), the Court held that modifications to custody arrangements require proper proceedings with full due process protections, and that ex parte modifications are disfavored absent genuine emergency.

D. The Fruit of the Poisonous Tree Doctrine Requires Vacatur

The August 8, 2025 ex parte order was based in substantial part on a recording made by Lori Watson in violation of MCL 750.539c, Michigan's felony eavesdropping statute. Under the fruit of the poisonous tree doctrine, evidence obtained through illegal means, and all evidence derived therefrom, must be excluded. *Wong Sun v. United States*, 371 U.S. 471 (1963).

Because the primary evidentiary basis for the August 8, 2025 order was illegally obtained, the order itself is tainted and must be vacated. All subsequent orders that relied upon or were influenced by the illegally obtained evidence are similarly tainted and must be set aside.

E. The Volume and Pattern of Ex Parte Orders Demonstrates Systemic Failure

Fifty-two (52) ex parte orders in a single domestic relations case, with 100% favoring one party, is not merely unusual -- it is unprecedented. This pattern demonstrates either: (a) a systematic failure to follow MCR 2.119 procedural requirements; or (b) a predetermined bias against Plaintiff. In either case, the remedy is the same: vacatur of all improperly entered orders and restoration of proper procedural protections.

F. Michigan Constitutional Protections

In addition to federal constitutional protections, Article 1, Section 17 of the Michigan Constitution independently guarantees that "no person shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty or property, without due process of law." Michigan courts have interpreted this provision as providing protections at least coextensive with the federal Due Process Clause, and in some instances broader. *Mettler Walloon, LLC v. Melrose Township*, 281 Mich App 184, 198 (2008).

The Michigan Supreme Court in *Hunter v. Hunter*, 484 Mich 247 (2009), specifically recognized that Michigan parents have a fundamental constitutional right to the care and custody of their children, and that this right demands rigorous procedural protections before it may be curtailed. The ex parte procedures employed in this case fall far short of these constitutional requirements.

G. The Cumulative Effect Requires Vacatur

Even if any single ex parte order, viewed in isolation, might arguably withstand scrutiny, the cumulative effect of 52 such orders -- all entered without proper notice and hearing, all favoring one party -- constitutes a systematic denial of due process that requires comprehensive vacatur. The remedy for systemic procedural failure is systemic correction:

vacating all improperly entered orders and starting fresh with proper procedural protections in place.

V. RELIEF REQUESTED

WHEREFORE, Plaintiff Andrew J. Pigors respectfully requests that this Honorable Court:

1. **Vacate and set aside** all ex parte orders entered in this matter without proper notice and hearing as required by MCR 2.119;
2. **Specifically vacate** the August 8, 2025 ex parte order suspending Plaintiff's parenting time;
3. **Restore the status quo ante** as it existed prior to the improper ex parte orders;
4. **Order an evidentiary hearing** on all matters previously decided by ex parte order, with full due process protections;
5. **Exclude** all evidence derived from the illegally obtained recording (MCL 750.539c violation);
6. **Order** Defendant to show cause why sanctions should not be imposed for obtaining and presenting illegally recorded evidence;
7. **Grant** such other and further relief as this Court deems just and equitable.

PROPOSED ORDER

STATE OF MICHIGAN

IN THE 14TH CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW J. PIGORS, Case No. 2024-001507-DC

Plaintiff/Father, Hon. Jenny L. McNeill

v.

EMILY M. WATSON,

Defendant/Mother.

ORDER SETTING ASIDE EX PARTE ORDERS

The Court, having considered Plaintiff's Motion to Set Aside Ex Parte Orders pursuant to MCR 2.612(C)(1), the record in this case, and the arguments of the parties,

IT IS HEREBY ORDERED that:

1. All ex parte orders entered in this matter without compliance with MCR 2.119 notice and hearing requirements are hereby VACATED and SET ASIDE.
2. The August 8, 2025 ex parte order suspending Plaintiff's parenting time is specifically VACATED.
3. The status quo ante as it existed prior to the improper ex parte orders is hereby RESTORED.

4. An evidentiary hearing on all contested matters shall be scheduled within 21 days of the date of this Order.

5. All evidence derived from recordings obtained in violation of MCL 750.539c is hereby EXCLUDED from further proceedings.

Date: _____

Hon. _____

14th Circuit Court Judge

VERIFICATION

I, Andrew J. Pigors, declare under the penalties of perjury that the facts stated in this Motion are true and correct to the best of my knowledge, information, and belief.

Date: March 04, 2026

Andrew J. Pigors, Plaintiff Pro Se

[Address]

[Phone]

[Email]

CERTIFICATE OF SERVICE

I hereby certify that on March 04, 2026, I served a true copy of the foregoing Motion to Set Aside Ex Parte Orders upon all parties of record via [electronic filing through MiFILE / first-class mail] to:

Emily M. Watson

[Address on file]

[or Attorney for Defendant]

Andrew J. Pigors